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THE HIGH COST OF MISADVENTURISM

Recent developments in the Pannun case are an embarrassment and potential diplomatic vulnerability for New Delhi



BY AJAI SAHNI

With Nikhil Gupta's guilty plea in a US federal court in the alleged plot to assassinate Gurpatwant Singh Pannun, the case has crossed a critical threshold: the conspiracy to carry out a murder-for-hire on American soil is no longer a mere allegation or inference from intelligence assessments, but a fact admitted in a court of law. The indictment has already named one Indian 'government official'—Vikash Yadav—and this judicial transformation allows prosecutors to proceed against additional suspects. Published accounts of the conversations between Gupta and Yadav refer to directives from an unnamed 'Boss' and, given the manifest lack of communication hygiene between the two, Yadav's conversations with others are also likely to be on FBI records. Consequently, officials higher up the chain may possibly have been compromised, and US agencies could widen their investigations to include them.

Technical evidence alone, however, would be insufficient in such a process, and Yadav's extradition would be key to such an expansion—and is unlikely. Even as the FBI put him on its Most Wanted list, the Delhi Police charged him with extortion, abduction and assault—initiating criminal proceedings in India that obviate extradition. He was arrested on December 18, 2023, but granted bail in April 2024, and has since 'disappeared', failing to respond to court summons. Newspaper reports suggest he is 'expected to appear' for his next hearing on February 20.

A further and immediate consequence of Gupta's conviction is that it will likely embolden the Khalistan constituency in the diaspora, who will have greater confidence that India won't risk such actions in future—at least in the West—conferring a measure of impunity on the separatists. This could escalate participation in acts of defiance, disruption and vandalism, particularly against diplomatic properties, besides deeper involvement in subversive activities in the home country, such as offers of bounties for vandalism or targeted violence on infrastructure and leadership elements.



Illustration by RAJ VERMA

THE US CAN BE EXPECTED TO RAISE THE ISSUE OPPORTUNISTICALLY, FOR ADDITIONAL ARM-TWISTING DURING NEGOTIATIONS

In 2023, in response to a query on the impact of the Pannun assassination conspiracy on Indo-US ties, Prime Minister Narendra Modi responded dismissively, "I don't think it is appropriate to link a few incidents with diplomatic relations between the two countries." This is, broadly, correct. This episode is unlikely to play any decisive role in the complex of Indo-US relations. Yet, further investigative pressure in this case will certainly give Washington additional leverage over New Delhi, when the latter is already extraordinarily vulnerable. The US can be expected to raise this issue opportunistically, from time to time, for some additional arm-twisting during negotiations. This is not a matter of justice or morality—the US is hardly in a position to preach to others on this—but, crucially, of incremental coercion.

There has, over the past years, been a particular eagerness in Delhi to imitate Israel and its intelligence arm, the Mossad—unfortunately without any objective assessment of capacities and capabilities and, crucially, without the realisation that Israel and the Mossad operate under the unqualified protection of the US, as well as multiple and powerful Western allies. India, on the other hand, acts alone, and has few friends. The Nijjar murder allegations in Canada and the Pannun case in the US have left New Delhi even more isolated.

Worse, these costs have been inflicted without any possible calculus of advantage. Over the past decades, terrorism has been substantially contained in all theatres in India, and was no significant threat to national security in Punjab, nor was there any imminent threat of extraordinary terrorist operations by pro-Khalistan elements in the diaspora. There was no need for these misadventures other than domestic partisan projections—and the realisation of the boast, "*ghar mein ghus kar marenge*" (we will hit them in their homes), essentially against manifestly easy targets. The unintended consequences of the Pannun assassination conspiracy demonstrate the tremendous mismatch between national pretensions and national power under the BJP government. ■

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